come within the exclusion for "members" in 2 U. S. C. § 441b(b)(4)(C). Although membership cards are ultimately sent to those who either contribute or respond in some other way to respondent's mailings, the solicitation letters themselves make no reference to members. Members play no part in the operation or administration of the corporation; they elect no corporate officials, and indeed there are apparently no membership meetings. There is no indication that NRWC's asserted members exercise any control over the expenditure of their contributions. Moreover, as previously noted, NRWC's own articles of incorporation and other publicly filed documents explicitly disclaimed the existence of members. We think that under these circumstances, those solicited were insufficiently attached to the corporate structure of NRWC to qualify as "members" under the statutory proviso.

Unlike the Court of Appeals, we do not think this construction of the statute raises any insurmountable constitutional difficulties. The Court of Appeals expressed the view that the sort of solicitations involved here would neither corrupt officials nor coerce members of the corporation holding minority political views, the two goals which it believed Congress had in mind in enacting the statutory provisions at issue. That being so, the Court of Appeals apparently thought, and respondent argues here, that the term "members" must be given an elastic definition in order to prevent impermissible interference with the constitutional rights enunciated in cases such as *NAACP* v. *Button*, 371 U. S. 415 (1963), and *Schaumburg* v. *Citizens for a Better Environment*, 444 U. S. 620 (1980). Similarly, respondent places considerable reliance on our statement in *Buckley* v. *Valeo*, 424 U. S. 1, 25 (1976):

> "The Court's decisions involving associational freedoms establish that the right of association is a 'basic constitutional freedom,' *Kusper* v. *Pontikes*, 414 U. S., at 57, that is 'closely allied to freedom of speech and a right

> which, like free speech, lies at the foundation of a free society.' *Shelton* v. *Tucker*, 364 U. S. 479, 486 (1960). See, *e. g.*, *Bates* v. *Little Rock*, 361 U. S. 516, 522–523 (1960); *NAACP* v. *Alabama*, [357 U. S.], at 460–461; *NAACP* v. *Button*, *supra*, at 452 (Harlan, J., dissenting). In view of the fundamental nature of the right to associate, governmental 'action which may have the effect of curtailing the freedom to associate is subject to the closest scrutiny.' *NAACP* v. *Alabama*, *supra*, at 460–461."

Under this standard, respondent asserts, the Act's restriction of its solicitation cannot be upheld.

While we fully subscribe to the views stated in *Buckley*, in the very next sentence to the passage quoted by the respondent, the Court went on to say:

> "Yet, it is clear that '[n]either the right to associate nor the right to participate in political activities is absolute.' *CSC* v. *Letter Carriers*, 413 U. S. 548, 567 (1973)." *Ibid.*

In this case, we conclude that the associational rights asserted by respondent may be and are overborne by the interests Congress has sought to protect in enacting § 441b.

To place respondent's constitutional claims in proper perspective, we repeat language used in *Buckley* v. *Valeo*, *supra*, at 13:

> "The constitutional power of Congress to regulate federal elections is well established and is not questioned by any of the parties in this case."

The first purpose of § 441b, petitioners state, is to ensure that substantial aggregations of wealth amassed by the special advantages which go with the corporate form of organization should not be converted into political "war chests" which could be used to incur political debts from legislators who are aided by the contributions. See *United States* v. *Automobile Workers*, 352 U. S. 567, 579 (1957). The second purpose

of the provisions, petitioners argue, is to protect the individuals who have paid money into a corporation or union for purposes other than the support of candidates from having that money used to support political candidates to whom they may be opposed. See *United States* v. *CIO*, 335 U. S. 106, 113 (1948).

We agree with petitioners that these purposes are sufficient to justify the regulation at issue. Speaking of corporate involvement in electoral politics, we recently said:

> "The overriding concern behind the enactment of statutes such as the Federal Corrupt Practices Act was the problem of corruption of elected representatives through the creation of political debts. The importance of the governmental interest in preventing this occurrence has never been doubted." *First National Bank of Boston* v. *Bellotti*, 435 U. S. 765, 788, n. 26 (1978) (citations omitted).

Likewise, in *Buckley* v. *Valeo*, *supra*, at 26–27, we specifically affirmed the importance of preventing both the actual corruption threatened by large financial contributions and the eroding of public confidence in the electoral process through the appearance of corruption. These interests directly implicate "the integrity of our electoral process, and, not less, the responsibility of the individual citizen for the successful functioning of that process." *United States* v. *Automobile Workers*, *supra*, at 570.

We are also convinced that the statutory prohibitions and exceptions we have considered are sufficiently tailored to these purposes to avoid undue restriction on the associational interests asserted by respondent. The history of the movement to regulate the political contributions and expenditures of corporations and labor unions is set forth in great detail in *United States* v. *Automobile Workers*, *supra*, at 570–584, and we need only summarize the development here. Seventy-five years ago Congress first made financial contributions to federal candidates by corporations illegal by enacting the

Tillman Act, ch. 420, 34 Stat. 864. Within the next few years Congress went further and required financial disclosure by federal candidates following election, Act of June 25, 1910, ch. 392, 36 Stat. 822, and the following year required pre-election disclosure as well. Act of Aug. 19, 1911, ch. 33, 37 Stat. 25. The Federal Corrupt Practices Act, passed in 1925, extended the prohibition against corporate contributions to include "anything of value," and made acceptance of a corporate contribution as well as the giving of such a contribution a crime. 43 Stat. 1070.

The first restrictions on union contributions were contained in the second Hatch Act, 54 Stat. 767, and later, in the War Labor Disputes Act of 1943, § 9, 57 Stat. 167, union contributions in connection with federal elections were prohibited altogether. These prohibitions on union political activity were extended and strengthened in the Taft-Hartley Act, 61 Stat. 136, which broadened the earlier prohibition against contributions to "expenditures" as well. Congress codified most of these provisions in the Federal Election Campaign Act of 1971, 86 Stat. 3, and enacted later amendments in 1974, 88 Stat. 1263, in 1976, 90 Stat. 475, and in 1980, 93 Stat. 1339. Section 441b(b)(4)(C) is, as its legislative history indicates, merely a refinement of this gradual development of the federal election statute.

This careful legislative adjustment of the federal electoral laws, in a "cautious advance, step by step," *NLRB* v. *Jones & Laughlin Steel Corp.*, 301 U. S. 1, 46 (1937), to account for the particular legal and economic attributes of corporations and labor organizations warrants considerable deference, see *Rostker* v. *Goldberg*, 453 U. S. 57, 64, 67 (1981). As we discuss below, it also reflects a permissible assessment of the dangers posed by those entities to the electoral process.

In order to prevent both actual and apparent corruption, Congress aimed a part of its regulatory scheme at corporations. The statute reflects a legislative judgment that the special characteristics of the corporate structure require par-